

# **CV-24-010716 NATIONSTAR MORTGAGE LLC vs HALVORSON, NICOLE M - Defendant's Motion to Quash Service of Summons and Complaint for Lack of Personal Jurisdiction - DENIED.**

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: Defendant specially appears and moves to quash service pursuant to Code of Civil Procedure section 418.10(a)(1), contending that Plaintiff failed to establish reasonable diligence before obtaining service by publication and further failed to comply with the publication orders entered by the Court. For the reasons set forth below, the motion is DENIED. The record reflects that Plaintiff filed applications for service by publication supported by declarations signed under penalty of perjury and numerous exhibits documenting efforts to locate and serve Defendant. Those efforts included multiple Accurant searches, repeated personal service attempts at the Beck Creek Lane property, telephone calls to two separate numbers associated with Defendant, text-message communications, review of Defendant's filings in a separate Stanislaus County civil action, email transmission of the summons and complaint with a Notice and Acknowledgment of Receipt, and five additional service attempts by the Stanislaus County Sheriff's Office. Based on that showing, the Court entered publication orders on February 9, 2026 and April 30, 2026. Defendant first argues that the publication orders are void because Plaintiff relied on declarations rather than affidavits. The Court disagrees. Code of Civil Procedure section 2015.5 generally permits a declaration executed under penalty of perjury to be used in lieu of an affidavit. Defendant identifies no provision of Code of Civil Procedure section 415.50 requiring a notarized affidavit or exempting publication applications from section 2015.5. Both publication applications were supported by declarations executed under penalty of perjury, and both orders expressly recite that the Court considered declarations submitted pursuant to section 415.50. Defendant has therefore failed to demonstrate that the publication orders were void or improperly issued on this basis. Defendant next argues that Plaintiff failed to exercise reasonable diligence before seeking publication. The record does not support that contention. Plaintiff documented extensive efforts spanning several months to identify Defendant's location and complete service through conventional means. As noted above, those efforts included repeated attempts at personal service at the property identified through Accurant searches, investigation of phone numbers and email addresses associated with Defendant, direct communications attempting to obtain acknowledgment of service, review of Defendant's own court filings showing the Beck Creek Lane address and contact information, and assistance from the Stanislaus County Sheriff's Office. Several process-server declarations further reported vehicles at the property, dogs barking, movement within the residence, and observations suggesting occupancy but nonresponse. The Court finds that the evidence presented in support of the publication applications constituted a substantial showing of reasonable diligence under Code of Civil Procedure section 415.50. Defendant also challenges Exhibit 10 to the publication application, contending that the Sheriff's declaration was unsigned. The record does not support that characterization. Exhibit 10 contains an Affidavit of Unsuccessful Service executed through the Stanislaus County Sheriff's Office and an attached declaration of diligence incorporating the service-attempt history. While the underlying service-attempt log does not contain separate signatures from each individual deputy identified therein, Defendant has cited no authority establishing that the Sheriff's affidavit is invalid for that reason or that the Court was prohibited from considering it as part of the overall diligence showing. In any event, even excluding Exhibit 10 entirely, the publication applications contain numerous independently executed declarations from private process servers and other evidence of substantial, unsuccessful efforts to locate and personally serve Defendant. Defendant further argues that Plaintiff failed to comply with various provisions of the Court's April 30, 2026 order authorizing service by publication. The Court agrees that the record does not reflect strict compliance with every aspect of that order. In particular, the record does not appear to contain a declaration establishing that copies of the summons and complaint were mailed to Defendant, nor does it contain a declaration stating that Defendant's address could not be ascertained before expiration of the publication period. The record likewise reflects that posting of the summons and complaint occurred after the ten-day period specified in the order. These irregularities do not warrant quashing service under the circumstances presented here. Code of Civil Procedure section 415.50(c) provides that service by publication is complete as prescribed by Government Code section 6064. The record reflects that Plaintiff published the summons in the Patterson Irrigator on June 4, June 11, June 18, and June 25, 2026, thereby satisfying the statutory requirements for service by publication. Once those requirements were met, service by publication became complete by operation of statute. Moreover, the Court's April 30, 2026 order authorized two distinct methods of notice: (1) publication of the summons in the designated newspaper and (2) posting of the summons and complaint at the subject property. Defendant's arguments largely conflate the two. Even assuming, arguendo, that Plaintiff's late posting rendered the posting aspect of the order defective, such a defect would not invalidate the separate service by publication, which the Court finds was properly authorized and properly completed. Defendant's arguments that service by publication should never have been granted in the first instance have been rejected for the reasons discussed above. The

Court finds both that Plaintiff established reasonable diligence under Code of Civil Procedure section 415.50 and that the publication orders were validly issued. The Court further finds an absence of prejudice. Defendant acknowledges that she ultimately discovered the posted documents and obtained actual notice of the action. She thereafter timely prepared and filed the present motion to quash before any default was entered and before expiration of the time to challenge jurisdiction. Defendant identifies no missed deadline, lost evidence, unavailable witness, impaired defense, or other prejudice resulting from the delayed posting or the absence of a follow-up declaration. To the contrary, the substance of the present motion demonstrates familiarity with the publication applications, supporting declarations, and service history. By way of the completed publication, Defendant received constructive notice of the action. In addition, Defendant acknowledges receiving actual notice when she discovered the documents posted at the property. While Plaintiff may not have strictly complied with every procedural aspect of the Court's order, the Court finds substantial compliance, no resulting prejudice to Defendant, valid completion of service by publication, and actual notice sufficient to satisfy due process. Accordingly, Defendant has not established grounds to quash service. Defendant shall file and serve a responsive pleading within 15 days after Plaintiff serves a notice of this ruling. Plaintiff shall serve the notice of ruling by mail and file the notice of ruling and a proof of service within five court days of the hearing on this matter. To the extent Defendant requests sanctions, disciplinary referrals, orders to show cause, or other affirmative relief in her supporting memorandum, those requests have not been properly presented to the Court and are also DENIED.

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Defendant first argues that the publication orders are void because Plaintiff relied on declarations rather than affidavits. The Court disagrees. Code of Civil Procedure section 2015.5 generally permits a declaration executed under penalty of perjury to be used in lieu of an affidavit. Defendant identifies no provision of Code of Civil Procedure section 415.50 requiring a notarized affidavit or exempting publication applications from section 2015.5. Both publication applications were supported by declarations executed under penalty of perjury, and both orders expressly recite that the Court considered declarations submitted pursuant to section 415.50. Defendant has therefore failed to demonstrate that the publication orders were void or improperly issued on this basis.

Defendant next argues that Plaintiff failed to exercise reasonable diligence before seeking publication. The record does not support that contention. Plaintiff documented extensive efforts spanning several months to identify Defendant's location and complete service through conventional means. As noted above, those efforts included repeated attempts at personal service at the property identified through Accurant searches, investigation of phone numbers and email addresses associated with Defendant, direct communications attempting to obtain acknowledgment of service, review of Defendant's own court filings showing the Beck Creek Lane address and contact information, and assistance from the Stanislaus County Sheriff's Office. Several process-server declarations further reported vehicles at the property, dogs barking, movement within the residence, and observations suggesting occupancy but nonresponse. The Court finds that the evidence presented in support of the publication applications constituted a substantial showing of reasonable diligence under Code of Civil Procedure section 415.50.

Defendant also challenges Exhibit 10 to the publication application, contending that the Sheriff's declaration was unsigned. The record does not support that characterization. Exhibit 10 contains an Affidavit of Unsuccessful Service executed through the Stanislaus County Sheriff's Office and an attached declaration of diligence incorporating the service-attempt history. While the underlying service-attempt log does not contain separate signatures from each individual deputy identified therein, Defendant has cited no authority establishing that the Sheriff's affidavit is invalid for that reason or that the Court was prohibited from considering it as part of the overall diligence showing. In any event, even excluding Exhibit 10 entirely, the publication applications contain numerous independently executed declarations from private process servers and other evidence of substantial, unsuccessful efforts to locate and personally serve Defendant.

Defendant further argues that Plaintiff failed to comply with various provisions of the Court's April 30, 2026 order authorizing service by publication. The Court agrees that the record does not reflect strict compliance with every aspect of that order. In particular, the record does not appear to contain a declaration establishing that copies of the summons and complaint were mailed to Defendant, nor does it contain a declaration stating that Defendant's address could not be ascertained before expiration of the publication period. The record likewise reflects that posting of the summons and complaint occurred after the ten-day period specified in the order.

These irregularities do not warrant quashing service under the circumstances presented here. Code of Civil Procedure section 415.50(c) provides that service by publication is complete as prescribed by Government Code section 6064. The record reflects that Plaintiff published the summons in the Patterson Irrigator on June 4, June 11, June 18, and June 25, 2026, thereby satisfying the statutory requirements for service by publication. Once those requirements were met, service by publication became complete by operation of statute.

Moreover, the Court's April 30, 2026 order authorized two distinct methods of notice: (1) publication of the summons in the designated newspaper and (2) posting of the summons and complaint at the subject property. Defendant's arguments largely conflate the two. Even assuming, arguendo, that Plaintiff's late posting rendered the posting aspect of the order defective, such a defect would not invalidate the separate service by publication, which the Court finds was properly authorized and properly completed. Defendant's arguments that service by publication should never have been granted in the first instance have been rejected for the reasons discussed above. The Court finds both that Plaintiff established reasonable diligence under Code of Civil Procedure section 415.50 and that the publication orders were validly issued.

The Court further finds an absence of prejudice. Defendant acknowledges that she ultimately discovered the posted documents and obtained actual notice of the action. She thereafter timely prepared and filed the present motion to quash before any default was entered and before expiration of the time to challenge jurisdiction. Defendant identifies no missed deadline, lost evidence, unavailable witness, impaired defense, or other prejudice resulting from the delayed posting or the absence of a follow-up declaration. To the contrary, the substance of the present motion demonstrates familiarity with the publication applications, supporting declarations, and service history.

By way of the completed publication, Defendant received constructive notice of the action. In addition, Defendant acknowledges receiving actual notice when she discovered the documents posted at the property. While Plaintiff may not have strictly complied with every procedural aspect of the Court's order, the Court finds substantial compliance, no resulting prejudice to Defendant, valid completion of service by publication, and actual notice sufficient to satisfy due process. Accordingly, Defendant has not established grounds to quash service.

Defendant shall file and serve a responsive pleading within 15 days after Plaintiff serves a notice of this ruling. Plaintiff shall serve the notice of ruling by mail and file the notice of ruling and a proof of service within five court days of the hearing on this matter.

To the extent Defendant requests sanctions, disciplinary referrals, orders to show cause, or other affirmative relief in her supporting memorandum, those requests have not been properly presented to the Court and are also DENIED.